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PME & Affaires

TYPE

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Press article

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SUMMARY SHEET

Franchising: independence and dependence — PME Affaires magazine · December 1996

Overview: press article published in the magazine PME Affaires (November-December 1996 issue), in the “Les rendez-vous de la franchise” section, on relations between franchisor and franchisee.

Key points

The article sets out the tension between the franchisee's legal independence and its economic dependence. The franchisee is presented as responsible for its business and as the direct point of contact for its customers. The text relies on EEC Regulation 4087/88 of 30 November 1988 validating franchising under Community law, on Article 85 of the EEC Treaty prohibiting cartels, and on a ministerial order of 21 February 1991 requiring the franchisee to state its status as an independent trader. It distinguishes the dependence of the novice franchisee, subject to a parent-child type of relationship with its franchisor, from the more limited dependence of the franchisee who is already a professional. An interview box discusses the shift of the model towards forms of “partnership”, and a statistical overview compares franchising in European countries.

Significance

A background document of a doctrinal nature, with no direct link to the parties, it sheds light on the notions of independence and dependence at the heart of the dispute between the franchisee and McDonald's.

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Source: bernardcollorafi.org/en/documents/pme-affaires-franchise-independence-dependence-1996/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.